

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLIMP

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF MARJORIE HERRERA-GILLESPIE, LPC, LICENSE NO. 224

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Marjorie Herrera-Gillespie, LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice as a licensed professional counselor in Colorado on July 21, 1990. Respondent was issued license number 224.

3. Respondent is a person practicing psychotherapy in the state of Colorado as provided in C.R.S. §12-43-201(9). Respondent practiced psychotherapy in the cases involved in this proceeding.

4. On or about February 1, 1994 the Board initiated a complaint regarding respondent based on reports that she was convicted of medicaid fraud.

5. Following an investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for disciplinary action regarding respondent's license to practice professional counseling and practice of psychotherapy in the state of Colorado.

6. Respondent understands that she has the right to a hearing with respect to the complaint filed against her. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute; gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that she has the right to appeal the Board's final order to the Court of

Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

7. Respondent agrees that she freely and voluntarily enters into this agreement including practice monitoring and education.

8. Respondent is not currently practicing professional counseling and psychotherapy in Colorado. If and when respondent seeks to resume the practice of professional counseling and psychotherapy in Colorado she shall notify the State Grievance Board and at that time respondent shall comply with the terms of this stipulation and order.

9. The Board, by this stipulation and order, hereby orders that should respondent seek to resume the practice of professional counseling and psychotherapy in the state of Colorado her practice of professional counseling and psychotherapy shall be on probation for a period of three years. Respondent may not resume her practice of professional counseling and psychotherapy until she has a Board-approved therapist who will evaluate and supervise her practice ("practice monitor") in place. During the period of probation respondent can practice professional counseling and psychotherapy only if she complies with the conditions of the probation and has a practice monitor in place.

10. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of professional counseling and psychotherapy must be evaluated and monitored by a Board-approved therapist ("practice monitor"), who evaluates respondent's practice of professional counseling and psychotherapy, monitors respondent's billing and records practices and reports in writing to the Board in accordance with this order.

c. The practice monitors first responsibility will be to conduct an evaluation of respondent's practice and proposed practice of professional counseling and psychotherapy and her qualifications and ability to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice, with skill and safety for her clients, focusing particularly on respondent's billing and records practices to assure she appropriately bills clients only for services performed, as actually performed, and for the amount of services actually provided. The practice monitor will provide a written report to the Board as part of her/his first practice monitor report, setting forth findings and any recommendations regarding respondent's billing or records practices.

d. Should the practice evaluator determine that respondent is not safe to practice professional counseling and psychotherapy or does not have the appropriate qualifications for some portion of her practice or proposed practice, respondent shall not practice professional counseling and psychotherapy or that portion of the practice she is not qualified for until she is found safe and/or qualified to practice. Based on the findings and recommendations of the practice monitor, the Board shall determine necessary actions that respondent must take and conditions she must meet so that she can be considered safe to practice professional counseling and psychotherapy and fully qualified for her practice or proposed practice of professional counseling and psychotherapy. Once respondent has taken the appropriate actions and met the conditions so that she is safe and qualified to fully practice professional counseling and psychotherapy, she may engage in the full practice of professional counseling and psychotherapy under the terms of her probation.

e. The practice monitoring shall be conducted as follows:

(i) The practice monitor shall monitor all billing records and necessary client records to assure that respondent has appropriately billed only for services performed as actually performed and for the amount of services actually provided, and reporting in writing to the Board in accordance with this stipulation and order.

(ii) The practice monitoring shall consist of reviewing all respondent's billing records and necessary client records at least once a month for the first twelve months of practice monitoring. Following the first twelve months of practice monitoring, unless otherwise directed by the Board, the practice monitor shall review a random sample of at least 50 percent of respondent's billing records and necessary client records. During the monitoring the practice monitor shall assure that he/she has reviewed enough of respondent's billing records and such client records as are necessary to assure that respondent has appropriately billed only for services performed, in the manner they were performed, and for the amount of services actually provided. The practice monitor shall report in writing to the Board in accordance with this stipulation and order.

(iii) The practice monitor is authorized to and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems necessary and appropriate to determine whether respondent is appropriately billing clients for services performed in the manner they were performed and for the amount of services actually provided.

(iv) The practice monitor shall report the results of her/his review to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report by the fifth day of the month following the first full

month after written approval of the practice monitor. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e., on a monthly basis) for the first twelve reports. After submission of the first twelve reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports by the fifth day of every third month (i.e., on a quarterly basis).

(v) If the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice or has a physical or mental disability or other condition which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care, the practice monitor shall report this opinion and the basis for the opinion to the Board. The practice monitor shall make such report in writing within 48 hours of forming her/his opinion. The practice monitor shall send a copy of such a report to the respondent when s/he sends the report to the Board.

(vi) After Board approval of the practice monitor, respondent and her practice monitor shall enter into a written contract for practice monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this stipulation and order, the Board's file and other pertinent material on this case; has read these materials; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor.

(vii) Respondent or her practice monitor may terminate the monitoring relationship on written notice to the other and the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this stipulation and order.

(viii) Respondent cannot practice professional counseling or psychotherapy without a practice monitor in place.

f. Respondent shall not supervise or consult with other persons for the purpose of those other persons providing psychotherapy to clients unless such supervision or consultation is monitored in accordance with paragraph 10e.

g. Respondent must complete at least 20 hours per year of Board-approved professional continuing education during the period of probation. This education shall deal with billing practices and legal/ethical issues relating to the practice of professional counseling and psychotherapy. Completion of an approved jurisprudence workshop is required as part of this educational requirement.

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h. Respondent is responsible for the reports due under this order and must take reasonable steps to assure that required reports are provided to the Board in accordance with this order.

i. Respondent must pay all costs and/or expenses incurred for practice monitoring, education or any other action required in fulfilling the requirements of this order.

j. During the period of probation respondent must provide written notification to every professional counseling and psychotherapy client stating the name, address, and telephone number of her practice monitor. Such notice may be provided in a mandatory disclosure form.

k. Respondent agrees that she will provide and allow her practice monitor to provide medical or psychological information obtained in the normal course of practice monitoring to the Board in the event the practice monitor determines that she is not practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice or has a physical or mental disability which renders her unable to treat her clients with skill and safety or which may endanger the health or safety of persons under her care. As part of this stipulation and order respondent explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her practice monitor in the normal course of practice monitoring, if the practice monitor determines that she is not practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice or has a physical or mental disability which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care.

11. All time periods and obligations of the probation as stated in this order run only while respondent is engaged in the practice of professional counseling and psychotherapy in Colorado under the supervision of a Board-approved practice monitor. They are tolled and suspended at all other times.

12. If, after resuming the practice of professional counseling and psychotherapy, respondent discontinues the practice of professional counseling and psychotherapy in Colorado, she shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date she ceased practicing and her new address if she has moved.

13. In the event respondent subsequently resumes her practice of professional counseling and psychotherapy in Colorado, she shall notify the Board in writing within thirty (30) days of the resumption of practice in Colorado. Such notification shall include her address and the date on which she resumed practice.

14. As used in this stipulation and order, the terms

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"practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as "professional counseling" defined in C.R.S. §12-43-601(4). The terms "practice of psychotherapy", "psychotherapy practice", and "engaged in the practice of psychotherapy" shall have the same meaning and scope as the term "psychotherapy" defined in C.R.S. §12-43-201(9).

15. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

16. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

17. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

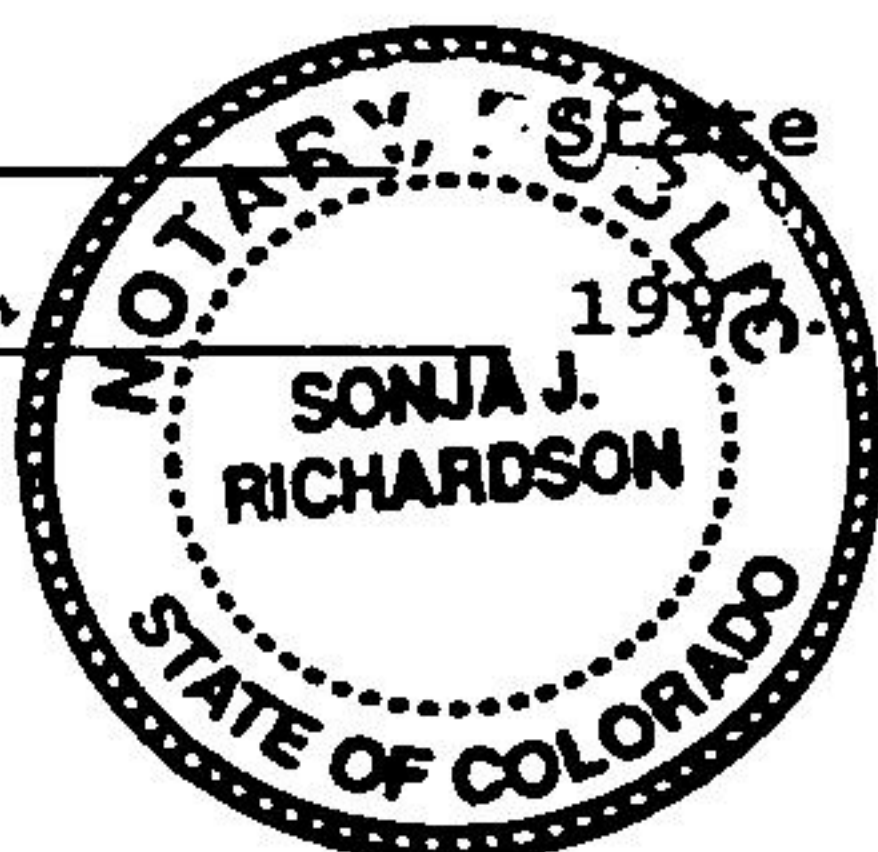
18. This stipulation and order shall take effect on acceptance and signature by the Board.

19. This stipulation and order is a public record.

Marjorie Herrera-Gillespie, LPC
MARJORIE HERRERA-GILLESPIE, LPC
Respondent

Subscribed and sworn to before me in the County of
Weld State of Colorado, this 31st day of

March



Sonja J. Richardson
NOTARY PUBLIC

My Commission Expires:

12/31/2000

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ACCEPTED, SIGNED, AND ORDERED this 9th day of April,
1997.

COLORADO STATE GRIEVANCE BOARD



DANIEL R. ROBINSON
Board Chair

Dated: April 9, 1997

APPROVED AS TO FORM

FOR THE RESPONDENT:


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